



CHAPTER lxxvi.

An Act to authorise the Market Rasen Water Company to construct new works to raise additional capital and for other purposes. A.D. 1914.
[31st July 1914.]

WHEREAS the Market Rasen Water Company (in this Act called "the Company") were incorporated by the Market Rasen Water Act 1875 (in this Act referred to as "the Act of 1875") and by that Act were empowered to construct works and to supply with water the town of Market Rasen in the county of Lincoln and the several parishes and places adjacent thereto as mentioned in the said Act:

And whereas under the authority of the Act of 1875 the Company were authorised to raise or issue capital amounting in the whole to the sum of ten thousand pounds and to borrow on mortgage any sum or sums not exceeding in the whole two thousand five hundred pounds:

And whereas the Company have raised issued and expended the whole of the said capital but have borrowed on mortgage no part of the said sum of two thousand five hundred pounds:

And whereas the demand for water within the statutory limits of supply of the Company has increased and is still increasing and for the better and more effectually enabling the Company to meet such increasing demand it is expedient that the Company should be empowered to make and maintain the new waterworks and to acquire the lands herein-after respectively described and to raise additional capital for the purposes of this Act and the general purposes of their undertaking and to apply their funds to those purposes and that further powers should be conferred upon the Company as provided by this Act:

And whereas plans and sections of the new works authorised by this Act showing the lines and levels thereof and a

A.D. 1914. — book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the parts of Lindsey in the county of Lincoln and those plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short titles. 1. This Act may be cited as the Market Rasen Water Act 1914 and the Act of 1875 and this Act may be cited together as the Market Rasen Water Acts 1875 and 1914.

Incorporation of general Acts. 2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

(1) The Waterworks Clauses Acts 1847 and 1863 (except the words “with the consent in writing of the owner
“ or reputed owner of any such house or of the agent
“ of such owner” in section 44 of the Waterworks Clauses Act 1847) :

(2) The Lands Clauses Acts :

(3) The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond; A.D. 1914.

The consolidation of the shares into stock;

The general meetings of the Company (excepting section 66) and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices;

And Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

- (4) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in the application of those provisions to this Act the term "railway" shall mean the intake tanks the service reservoir and so much of the conduits or lines of pipes by this Act authorised as will not be constructed in a highway and the expression "centre of the railway" shall mean respectively the outside of the intake tanks the boundaries of the service reservoir and the centre lines of so much of the conduits or lines of pipes as aforesaid.

3. Subject to the provisions of this Act the Company may wholly in the parts of Lindsey in the county of Lincoln and in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following works shown on the deposited plans and sections (that is to say):— Power to make water-works.

Work No. 1 A reservoir or tank to be situate wholly in the parish of Tealby in the rural district of Caistor in or upon land forming part of the enclosure numbered 24 on the ¹/₂₅₀₀ Ordnance map of the said parish of Tealby (2nd edition 1906) the centre being at a point 7·5 chains or thereabouts measured in a straight line in a south-westerly direction from the southern extremity of Bully Hill Farm buildings and 36 chains or thereabouts

A.D. 1914.

measured in a straight line in a north-westerly direction from the intersection of the two roads known as High Street and Papermill Lane:

Work No. 2 An aqueduct consisting of one or more conduits or lines of pipes (to be called Aqueduct No. 1) to be situate wholly in the said parish of Tealby commencing in Work No. 1 herein-before described and terminating in Work No. 5 herein-after described:

Work No. 3 A reservoir or tank to be situate wholly in the said parish of Tealby in or upon land forming part of the enclosure numbered 7 on the said Ordnance map of the said parish the centre being at a point 5 chains or thereabouts measured in a straight line in a north-easterly direction from the southern extremity of Bully Hill Farm buildings and 34·8 chains or thereabouts measured in a straight line in a north-westerly direction from the intersection of the two roads known as High Street and Papermill Lane:

Work No. 4 An aqueduct consisting of one or more conduits or lines of pipes (to be called Aqueduct No. 2) to be situate wholly in the said parish of Tealby commencing in Work No. 3 herein-before described and terminating by a junction with Work No. 2 herein-before described in the enclosure numbered 15 on the said Ordnance map of the said parish at a point 6 chains or thereabouts measured in a straight line in a southerly direction from the southern extremity of Bully Hill Farm buildings:

Work No. 5 A service reservoir to be situate wholly in the said parish of Tealby in or upon land forming part of the enclosure numbered 240 on the said Ordnance map of the said parish the centre being at a point 31·5 chains measured in a straight line in a north-easterly direction from the north-eastern corner of the farm buildings of Hamilton Villa and 13 chains or thereabouts measured in a straight line in a north-westerly direction from the southern extremity of the fence dividing enclosures numbered respectively 228 and 229 on the said Ordnance map:

Work No. 6 An aqueduct consisting of one or more conduits or lines of pipes (to be called Aqueduct No. 3) to be situate in the parishes of Tealby and Middle Rasen in

the rural district of Caistor and in the urban district and parish of Market Rasen commencing in Work No. 5 herein-before described and terminating in the said urban district of Market Rasen at the northern extremity of the eastern boundary fence of the approach road to the Market Rasen railway station.

A.D. 1914.

4. The Company in addition to the foregoing works may upon the lands shown upon the deposited plans make and maintain all such cuts channels pipes conduits culverts drains sluices water towers overflows waste-water channels gauges filter beds tanks banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connexion with or subsidiary to the before-mentioned works or any or either of them but nothing in this section shall exonerate the Company from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Power to
make sub-
sidiary works.

5. In the construction of the works authorised by this Act the Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding four feet upwards and ten feet downwards Provided that except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Limits of
deviation.

6. If the works by this Act authorised are not respectively completed within the period of five years from the passing of this Act then on the expiration of that period the powers by this Act granted for executing the same or in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed but nothing in this section contained shall restrict the Company from at any time extending enlarging deepening altering or renewing any of their waterworks and any plant and incidental works or increasing or improving their supply of water or from exercising any of the powers with respect to the construction of works conferred by the Acts incorporated with this Act from time to time as occasion may require.

Period for
completion
of works.

A.D. 1914.

Power to
take lands
and waters.

7. Subject to the provisions of this Act the Company may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference and they may for the purposes of their undertaking take collect impound use divert and appropriate the waters known as the Little Ash Holt Spring situate in the said parish of Tealby at the south-eastern end of the enclosure known as the Horse Close part of the Bully Hill Farm and numbered 24 on the $\frac{1}{2500}$ Ordnance map of the said parish (2nd edition 1906) and the Bully Hill Farm Spring situate in the said parish at the Bully Hill Farmstead and in the enclosure numbered 7 on the said Ordnance map and all such springs streams and waters as may be intercepted by the works by this Act authorised.

Power to
acquire ease-
ments only
in certain
cases.

8.—(1) The Company may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Company have acquired easements only under the provisions of this section the Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Company to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Owners may
be required
to sell parts
only of cer-
tain lands

9. And whereas in the construction of the works hereby authorised or otherwise in exercise of the powers of this Act it may happen that portions only of the houses or other buildings shown on the deposited plans may be sufficient for the purposes

of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section ninety-two of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the houses or other buildings described in the schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

A.D. 1914.
and build-
ings.

10. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
lands.

11. The Company may in addition to any other lands now belonging to them or which they are by this Act authorised to purchase compulsorily purchase take on lease or acquire by agreement and hold any lands not exceeding in the whole ten acres and may on all or any of such additional lands execute for the purposes of or in connexion with their waterworks any of the works (other than wells and works for taking or intercepting water) and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847 and the Company may also purchase by agreement any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) in under or over such additional lands which they may think requisite Provided that so long as any lands acquired by or leased to the Company under this section are held by them the Company shall not on any such lands cause or permit a nuisance or erect or authorise or permit the erection of any buildings other than offices and dwellings for persons in their employ and buildings connected with or necessary for the undertaking.

Purchase of
lands by
agreement.

A.D. 1914.

Persons
under dis-
ability may
grant ease-
ments &c.

12. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Works to
form part of
undertaking
of Company.

13. Subject to the provisions of this Act all works hereby authorised and the lands hereby authorised to be acquired and held shall for all purposes whatsoever form part of and be comprised in the undertaking of the Company.

Limiting
powers of
Company
to abstract
water.

14. The Company shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Discharge of
water into
streams.

15.—(1) For the purpose of executing constructing repairing cleansing emptying or examining any reservoir adit conduit line or lines of pipes or other works of the Company the Company may cause the water in any such work to be temporarily discharged into any available stream or watercourse Provided that no water shall be discharged in such a manner as to injure or interfere with any fish or spawn or spawning beds.

(2) In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

Power to
agree as to
drainage of
lands.

16. The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the works by the Act of 1875 and this Act authorised with reference to the execution by the Company or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving

the purity of the waters by the Act of 1875 and this Act authorised to be diverted collected and appropriated by the Company flowing to upon or from such lands directly or derivatively into such works. A.D. 1914.

17. The Company may hold any lands acquired by them under the powers of the Act of 1875 or this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of the Act of 1875 or this Act or the Lands Clauses Acts respectively but the Company shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking. Power to hold lands for protection of waterworks.

18. The Company may subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands sell lease exchange or otherwise dispose of to such persons and in such manner as the Company may think fit any lands houses or other property for the time being belonging to the Company which they do not require for the purposes of their undertaking. Company may sell spare lands of undertaking.

19. The provisions of section 35 (Restrictions may be imposed upon the sale of superfluous property) of the Act of 1875 shall extend and apply so as to enable the Company to exercise the powers of that section in relation to all or any of the lands the purchase or holding of which by the Company is by this Act authorised. Application of section 35 of Act of 1875.

20.—(1) If it shall be proved by the owner as herein-after in this section defined that by reason of the operations of the Company any diminution has taken place in the supply of water from any well borehole pond pool spring or watering place existing at the time of the passing of this Act as an effective source of supply such source of supply being situate within one mile from and not being the Bully Hill Springs the Little Ash Holt Spring and the Bully Hill Farm Spring (in this section called "the protected area") so as to render such supply ineffective the Company shall upon the written request of the owner of any such source of supply (in this section referred Provision where local sources of supply affected.

A.D. 1914. — to as "the owner" which term shall include any lessee or occupier) afford to the owner a supply of water equal to the amount of such diminution at such cost or rate (if any) as that the total cost to the owner of obtaining his full supply shall be the same (as nearly as may be) after as before the construction of the works by this Act authorised and the taking of water from the said springs and upon such other terms as may be agreed or failing agreement may be settled by arbitration as herein-after provided.

(2) For the purpose of affording a supply of water under this section the Company may supply water beyond their limits of supply and carry out all works necessary for that purpose Provided that such supply shall not be given without the consent of the local authority of the district and shall not be given within the limits of supply of any company authority or person supplying or authorised to supply water under parliamentary authority without the consent of such company authority or person.

(3) The Company may if they think fit in lieu of making good the diminution of such supply deepen any affected well or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution and the owner shall without making any charge therefor give the Company access and every facility for carrying out such deepening borings or headings and in the event of any such deepening borings or headings increasing the cost of obtaining or continuing to obtain such supply the Company shall pay to the owner the amount of such increase.

(4) If the Company do not afford such supply as aforesaid they shall make compensation in money to the owner for such diminution and they shall also make like compensation for any injury caused to the owner by the exercise by the Company of the powers conferred by the last preceding subsection the amount of such compensation to be settled in the case of difference by arbitration as herein-after provided.

(5) The owner shall afford the officers servants and other representatives of the Company at all reasonable times after the passing of this Act access to the source of supply in respect of which any claim is made under this section for the purpose of ascertaining particulars thereof and the level of the water therein.

(6) Any question or dispute arising under this section shall be referred to and determined by arbitration in manner provided by the Arbitration Act 1889. A.D. 1914.

21. For the benefit and protection of the owners or occupiers for the time being of the mills known as Tealby Water Mill and Thorpe Mill and the estate known as Bayons Manor Estate (in this section called "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Company have effect (that is to say) :— For protection of owners of mills &c.

- (1) The Company shall not in any one day of twenty-four hours take collect impound use divert and appropriate from the Bully Hill Springs the Little Ash Holt Spring and the Bully Hill Farm Spring a quantity of water exceeding two hundred and twenty-five thousand gallons :
- (2) The Company shall at the point or points where the water from the said springs is taken or abstracted or at such other point as may be agreed between the Company and the owner fix and maintain in proper working order an efficient meter or meters on the existing aqueduct and on the aqueducts by this Act authorised for recording the quantity of water taken collected impounded used diverted and appropriated and shall take and keep weekly records in writing of such water a copy of such records to be furnished monthly by the Company to the owner free of charge and the owner or his agent duly authorised by him in writing for the purpose shall be at liberty at all reasonable times after giving twenty-four hours' notice to the Company to inspect and test the said meter or meters :
- (3) So soon as the aqueducts by this Act authorised are completed and the Company are able to supply water by means thereof the Company shall cease to supply water through and by means of the existing aqueduct and shall not allow water to pass into the same until efficiently repaired and when so repaired such last-mentioned aqueduct shall be only used for the supply of water to the parish of Tealby except in cases of emergency :

A.D. 1914.

- (4) The Company shall not sink any well or shaft or make any boring or any other work for taking collecting impounding using diverting and appropriating any waters in or upon any lands nor take appropriate or use any watercourse spring stream or waters upon any lands acquired by the Company under the Act of 1875 and this Act and shall not take collect impound use divert and appropriate by those or any other means from the several springs or streams arising on or flowing through the said lands except the waters of the springs known as the Little Ash Holt Spring the Bully Hill Farm Spring and the springs known as the Bully Hill Springs acquired by the Company under the Act of 1875 and subject to the provisions of the immediately preceding subsection except by means of the aqueducts and reservoirs by this Act authorised:
- (5) The Company shall not under the provisions of the section of this Act whereof the marginal note is "Discharge of water into streams" discharge from any conduit line or lines of pipes water into any stream or watercourse except with the reasonable consent of the owner and at such times and in such manner as he shall reasonably approve:
- (6) The Company shall so construct the reservoirs or tanks by this Act authorised and the supply pipes conveying water thereto from the Little Ash Holt Spring the Bully Hill Farm Spring and the Bully Hill Springs or any of them that when the reservoirs and tanks are full water shall cease to flow into and through the said supply pipes from the said springs and shall flow into the River Rase at the springs' heads:
- (7) Aqueduct No. 1 and Aqueduct No. 2 to be constructed by the Company under the provisions of this Act shall not be of greater diameter than six inches and shall be watertight:
- (8) The Company shall free of charge to the owner provide and maintain for the use of the Bully Hill Farm for domestic and agricultural purposes at the Bully Hill Farm Spring a tank of a capacity of 500 gallons into which water from the spring shall first flow and from

the overflow of which tank the Company shall take the water by this Act authorised to be taken from the said spring. A.D. 1914. —

22. Notwithstanding anything contained in this Act the following provisions for the protection of Edmund Charles Tennyson d'Eyncourt or other the owner or owners for the time being (in this section called "the owner") of the Bayons Manor Estate in the parish of Tealby in the county of Lincoln (in this section referred to as "the estate.") or any part of the estate shall except so far as may be otherwise agreed in writing between the Company and the owner apply and have effect (that is to say):—

For protection of Edmund Charles Tennyson d'Eyncourt.

- (1) The Company shall not under the powers of this Act enter upon take and use temporarily or permanently any greater quantity of land on the estate than is actually required for the purpose of making and maintaining the reservoirs (Works Nos. 1 and 3) by this Act authorised and any lands which the Company may require for the purpose of protecting the Company's sources of supply from pollution:
- (2) The Company shall not (except as provided in the immediately preceding subsection) acquire any part of the estate or any easements or rights in or over the same other than an easement or right of making maintaining using cleansing repairing and renewing the aqueducts (Works Nos. 2 and 4) by this Act authorised and of obtaining access thereto but the Company may acquire such easements or rights in accordance with the provisions of subsection (1) of the section of this Act the marginal note of which is "Power to acquire easements only in certain cases" Provided that subsections (2) and (3) of such section shall not apply to such easements or rights or to the lands subject thereto or to the Company or the owner in respect thereof:
- (3) The Company shall construct the said aqueducts on the estate parallel with and at a distance of not exceeding three yards from the existing aqueduct of the Company and so that the top thereof shall not be nearer the present surface of the land than three feet:

A.D. 1914.

- (4) Where any aqueduct by this Act authorised passes under over or through the River Rase or any of its tributaries the said aqueduct shall be laid and constructed in such manner under over or through the said river or tributary as the owner may require and so as not in any way to impede or interfere with the free passage of water therein:
- (5) The Company shall not in exercising the powers of the section of this Act whereof the marginal note is "Dischargé of water into streams" unreasonably cast or permit or suffer to pass or be cast or washed into the River Rase or any stream spring or watercourse flowing into the said river any mud sludge or offensive matter or other deposit or materials contained in or taken out of or removed from any of their reservoirs aqueducts or other works or appliances:
- (6) No house or building shall be constructed on any part of the estate in respect of which an easement only is acquired other than valve houses or other similar buildings for working the said aqueducts and all such houses and buildings shall be of such design and character and height as shall be reasonably approved by the owner:
- (7) The Company shall not fence off or sever from the adjoining lands any lands forming part of the estate in respect of which an easement only shall be acquired but after the covering in of the said aqueducts the owner his lessees and tenants shall have the same rights of passing over and using such lands for all purposes as if such lands had not been taken or used by the Company but so as not to impede or interfere with the exercise of the easements or rights acquired by the Company:
- (8) The aqueducts and other works by this Act authorised shall be constructed where they are on through or under lands forming part of the estate according to such plan section and particulars and in such manner as shall be submitted to and reasonably approved by the owner and before entering upon any part of the estate for the purpose of constructing any of the works by this Act authorised the Company

shall give not less than three weeks' written notice to the owner of their intention so to do and the construction of the said works when commenced shall be carried on continuously and completed within a reasonable time from the date when commenced:

- (9) In the construction and maintenance of the said works in or upon any part of the estate in respect of which an easement only is acquired by the Company they shall firstly carefully remove from the surface all vegetable soil on the line or site of the works and on the completion of such construction or maintenance they shall replace such soil so as to restore the surface as nearly as may be to its former state. All surplus soil or material excavated in the construction or maintenance of the works shall be deposited on such part of the estate as the owner may direct not being at a greater distance from the place from which the same was excavated than one quarter of a mile. No materials other than such as shall have been excavated from the estate or than such as shall be required for the construction of the works shall be deposited upon any part of the estate which shall not have been acquired by the Company:
- (10) The Company shall in constructing and repairing or renewing any aqueduct or other work on or through any part of the estate fence in all excavations from time to time made on the land of the owner or in some other effectual manner prevent cattle sheep or other animals from falling into such excavations and the Company shall when the works are completed remove such fences:
- (11) The Company shall not excavate any materials from any part of the estate which shall not have been acquired by the Company except so far as may be necessary in the course of constructing and maintaining the works by this Act authorised on such part of the estate:
- (12) The Company shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the execution on the estate of any works by this Act authorised and subject to the rights of

A.D. 1914.

the Crown and except so far as the same may be proved to be the property of any other person all such objects shall become the property of the owner:

- (13) All walls fences gates sewers drains pipes water supplies and other like matters and things belonging to the owner which may be interfered with by the Company during the construction or maintenance of the said works shall subject to the provisions of this section be made good as soon as practicable by the Company who shall in such construction and maintenance do as little damage as possible to the estate and to the user and enjoyment thereof:
- (14) As soon as reasonably practicable after the said aqueducts shall have been laid through the estate any telegraph or telephone wires or other means of communication laid by the Company through the estate shall be placed underground by the side of and as near as practicable to the said aqueducts:
- (15) The Company shall in addition to any other compensation payable to the owner his lessees or tenants under the provisions of this Act or any Act incorporated therewith be responsible for and pay to the owner his lessees or tenants for all damage and injury to the stock trees or crops of the owner his lessees or tenants caused by or consequent upon the construction or maintenance of any of the works by this Act authorised and the owner his lessees or tenants shall be entitled to compensation for any injury or damage suffered by him by reason of any acts of the Company or their officers contractors or servants done or committed upon any lands of any other person for which he or they would be entitled to compensation if such acts were done or committed upon any part of the estate and shall at all times keep the owner his lessees and tenants indemnified against all claims for damage or loss occasioned to or sustained by the owner his lessees or tenants by or by reason of the construction of the works by this Act authorised:
- (16) The Company shall from time to time pay to the owner on demand the costs of the employment by

him of one additional keeper or watcher for the protection of the game and for the prevention of persons trespassing upon the estate during the construction of the works by this Act authorised on or in the locality of the estate if such employment is found to be reasonably necessary :

A.D. 1914.

- (17) No servant of the Company shall after the completion of the said works so far as the same are to be constructed on the estate or any adjoining lands enter upon any part of the estate unless such servant shall be wearing some distinguishing uniform or badge or hold some written or printed authority from the Company and be engaged upon the business of the Company :
- (18) In the construction maintenance and user of the works by this Act authorised the Company shall do as little damage as may be to any trees upon any part of the estate through which an easement only is acquired by the Company :
- (19) If any question or dispute shall arise between the Company and the owner under this section or as to anything to be done or not to be done thereunder the same shall where no provision is made for determining the same be referred to a single arbitrator to be agreed on between the parties or in default of agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party after seven days' notice to the other and the provisions of the Arbitration Act 1889 shall apply to such arbitration Provided that in the case of any arbitration as to the amount of any compensation payable to the owner under subsections (2) and (15) of this section the provisions of section 34 of the Lands Clauses Consolidation Act 1845 and the Lands Clauses (Taxation of Costs) Act 1895 shall apply to such arbitration :
- (20) The provisions of this section shall be in addition to and not in derogation of any other provisions of this Act or any Act incorporated therewith which may enure for the protection or benefit of the owner or

A.D. 1914.

his lessees or tenants Provided that the owner shall not in respect of the same loss or damage be entitled to recover compensation or damages under this section and also under any other provision of this Act or any Act incorporated therewith or otherwise.

For protection of
Thomas Hill.

23. For the protection of Thomas Hill or other the owner or owners of the Church Mill and premises at Market Rasen (herein-after in this section referred to as "the owner") the following provision shall apply and have effect (that is to say):—

The Company shall not without the consent in writing of the owner exercise the powers contained in this Act so as to abstract or take away from any springs or sources whatever any waters which flow into the River Rase above the Church Mill at Market Rasen exceeding 75,000 gallons in any one day over and above the maximum number of gallons of water which can or may be abstracted or taken away from the said river under the authority of the Act of 1875.

As to supply
to Middle
Rasen.

24. Within six months after water shall be supplied in any part of the limits of the Company from or by means of the works by this Act authorised the Company shall upon the written request of the rural district council of Caistor afford a supply of water to such of the inhabitants of the parish of Middle Rasen as may require a supply under and in accordance with the provisions of section 35 of the Waterworks Clauses Act 1847.

Power to lay
pipes in pri-
vate streets.

25. The Company may on the application of the owner or occupier of any premises within the limits of supply of the Company abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation in this Act or the Act of 1875.

As to com-
munication
pipes.

26. For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

27.—(1) The Company may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

A.D. 1914.
Byelaws for
preventing
waste &c. of
water.

(2) Such byelaws shall apply only in the case of premises to which the Company are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) All such byelaws shall be subject to the provisions contained in sections 182 183 184 and 186 of the Public Health Act 1875 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the Company were a local authority within the meaning of those sections and the secretary of the Company were the clerk of the local authority.

(4) A copy of all such byelaws in force for the time being shall be kept at the office of the Company. All persons may at all reasonable times inspect such copy without payment and the Company shall cause to be delivered a printed copy of all byelaws for the time being in force to every person applying for the same on payment of a sum not exceeding sixpence for each copy.

(5) In case of failure of any person to observe such byelaws as are for the time in force the Company may if they think fit after twenty-four hours’ notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Company as the water rates in respect of the premises are recoverable.

(6) Until any byelaws have been made confirmed and published under this section any regulations made by the Company for the like purposes under section 40 (Regulations to be

A.D. 1914. — made for preventing waste of water &c.) of the Act of 1875 and in force at the passing of this Act shall continue in force and have full effect.

Detection of waste.

28. Subject to the provisions of the Waterworks Clauses Act 1847 the Company may for the purpose of preventing and detecting waste affix and maintain meters and other apparatus on the service pipes and mains of the Company and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers of boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines wires and apparatus :

Provided that the Company shall not interfere with any wires or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

As to pressure.

29. The Company shall provide a constant supply in accordance with the provisions of the Waterworks Clauses Act 1847 but they shall not be required to supply water in any case at a pressure greater than that to be afforded by gravitation from the service reservoir or other work from which the supply shall be taken.

Rates payable by owners of small houses.

30. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Company not bound to supply several houses by one pipe.

31. The Company shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Supply of water by hose-pipe to stables &c.

32. When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept

the Company may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding ten shillings per annum as they may prescribe for each hose-pipe or other apparatus and any sum charged under this section shall be recoverable in the same manner as water rates. A.D. 1914.

33. The Company may supply water for other than domestic purposes on such terms and conditions as the Company think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to nor shall the Company afford to any company or person a supply of water for other than domestic purposes if and so long as such supply would interfere with the sufficiency of the supply of water for domestic purposes. Provided further that from and after the construction of the works by this Act authorised the Company shall not supply water for purposes other than domestic supply on any day on which there shall be in the reservoir by this Act authorised to be constructed at Hamilton Hill less than 160,000 gallons. Supply by measure.

34. The Company shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. Provided always that where a water supply to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by measure but nothing in this section shall authorise the Company to refuse to supply water for domestic purposes to a farmhouse at the ordinary rate calculated on the annual value thereof. Supply to houses partly used for trade &c.

35. The price to be charged for a supply of water by measure shall not exceed one shilling and sixpence per thousand gallons. Price of supply by measure.

36. The Company may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell meters.

37. Before any person connects or disconnects any meter by means of which any of the water of the Company is intended to be or has been registered he shall give not less than Notice to Company of connecting

A.D. 1914. twenty-four hours' notice in writing to the Company of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Company and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring
meters &c.

38. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Company or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company shall (without prejudice to any other right or remedy for the protection of the Company) be liable to a fine not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained:

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Company or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Company the Company may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Company by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Company when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

39. Where water is supplied by meter the register of the meter or other instrument for measuring water shall be *prima facie* evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Company. Provided always that if the Company and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

A.D. 1914.
Register of
meter to be
evidence.

40.—(1) The Company may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Company in providing such materials and executing such work shall be paid by the person requiring the same.

Power to
supply
fittings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

41. A notice to the Company from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company.

Notice of
discontinu-
ance.

42. The Company may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the limits of supply of the Company to any such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions

Contracts
for supplying
water in
bulk.

A.D. 1914. — and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under Parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply of the Company Provided also that nothing in this section shall authorise the Company to lay any mains beyond their limits of supply.

Power to
Company to
raise addi-
tional
capital.

43. In addition to the capital already authorised to be raised by the Company under the Act of 1875 the Company may for the purposes of this Act and the general purposes of their undertaking raise any further sums not exceeding in the whole seven thousand five hundred pounds by the issue of new ordinary shares or stock but the Company shall not issue any share under the authority of this Act of less nominal value than ten pounds nor shall any such share or stock issued under the authority of this Act vest in the person accepting the same unless and until the full nominal amount of such share or stock together with any premium obtained on the sale thereof as herein-after provided has been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of seven thousand five hundred pounds.

New shares
or stock to
be subject to
same inci-
dents as
other shares
or stock.

44. The additional capital created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the capital of the Company authorised to be raised by the Act of 1875 of the same class or description and the new shares or stock were shares or stock in that capital.

Dividends
on new
shares and
stock.

45. Subject to the provisions of this Act every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be.

46. The Company shall not in any one year pay out of their profits any larger dividend on the additional capital to be raised by them under the powers of this Act than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend on the ordinary share capital which shall have fallen short of the said sum of seven pounds per centum per annum.

A.D. 1914.
Limit of
dividend on
new capital.

47. The additional ordinary capital hereby created shall rank equally with the existing ordinary capital for payment of dividends up to seven pounds per centum per annum but without prejudice to the right of the existing capital to receive payment up to its maximum dividend out of excess profits.

Payment of
dividends.

48.—(1) All shares or stock created under the powers of this Act shall be issued in accordance with the provisions of this section.

New shares
or stock
to be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of every district wholly or partially included within the limits of supply of the Company and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the

A.D. 1914.

same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

Power to
borrow.

49. The Company may from time to time borrow on mortgage of their undertaking any sum or sums not exceeding in the whole one-third part of the amount of the original share capital authorised by the Act of 1875 and of the amount of the additional capital by this Act authorised to be raised by

the Company which at the time of borrowing has been raised under the powers of the Act of 1875 or this Act including the premiums (if any) realised on the sale thereof but no part shall be borrowed until the whole of the shares or stock in respect of which the power of borrowing is being exercised including the premiums (if any) realised on the sale thereof shall have been fully paid up and the Company shall have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock including the premiums (if any) realised on the sale thereof have been issued and fully paid up and upon production to such justice of the books of the Company issuing such shares or stock and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

A.D. 1914.

50. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth part of the total amount for the time being owing by the Company on mortgage.

Appointment of receiver.

51. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this Act or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Power to create debenture stock.

52. All moneys raised by the Company under this Act including premiums after deducting therefrom the expenses of and incident to the raising of such moneys shall be applied only to purposes to which capital is properly applicable and

Application of moneys.

A.D. 1914. — any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend and any such premiums may be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company. Provided that in any case where a power to raise money by borrowing is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as herein-before provided shall for such purpose be reckoned as part of the paid-up capital.

Power to
apply funds.

53. The Company may apply to any of the purposes of the Act of 1875 or of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under the said Act or this Act or which may be under their control and which are not required for the purposes to which they are by the said Act or this Act made specially applicable.

Qualification
of directors.

54. The qualification of a director of the Company shall be the possession in his own right of shares or stock of the nominal amount of not less than fifty pounds in the capital of the Company.

As to ap-
pointment of
managing
director.

55.—(1) The directors of the Company may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the

directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers Provided that the directors shall be responsible for the acts of any director acting under the powers of this section. A.D. 1914.

56. In addition to the powers which the directors of the Company may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company. Power for directors of Company to determine remuneration of secretary.

57. The Company may hold acquire maintain and let houses cottages offices and other buildings for persons in their employment or for the purposes of or in connexion with their undertaking and may erect maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company Provided that in the exercise by the Company of the powers of this section the Company shall be subject to the provisions of the Public Health Acts and any Act amending the same and of any byelaws made thereunder. Power to erect cottages.

58. No person shall be disqualified from continuing a director of the Company by reason of his being interested in any contract with the Company for or in respect of the sale of any lands to the Company or for any loan of money to the Company but no such person shall as a director vote in respect of any question as to any such contract. Contracts not to disqualify for office of director.

59. Save as otherwise by this Act expressly provided all offences against the Act of 1875 and this Act or either of them and all penalties forfeitures costs and expenses imposed or recoverable under the said Act or this Act or either of them or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

60. Proceedings for the recovery of any demand made under the authority of the Act of 1875 and this Act or either of them or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter Provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

A.D. 1914.
Penalties not
cumulative.

61. Penalties imposed under the Act of 1875 and this Act or either of them and the Acts wholly or in part incorporated therewith for one and the same offence shall not be cumulative.

Form and
service of
notices by
Company.

62. Any notice to be served on a person supplied with water shall be sufficiently authenticated by the signature of the secretary or other officer of the Company duly authorised in writing by the directors being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of water by the name either of the secretary or such officer as aforesaid being affixed thereto in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or if the premises supplied be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Several sums
in one
summons.

63. Where the payment of more than one sum by any person is due under this Act or any of the Acts relating to the Company any summons or warrant issued for the purposes of such Act in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Repeal.

64. As from the passing of this Act the sections hereinafter mentioned of the Act of 1875 shall be and the same are hereby repealed but without prejudice to anything previously lawfully done thereunder (that is to say):—

Section 11 (Representatives of the Company in case of bankruptcy);

Section 12 (Power to borrow on mortgage in respect of original capital);

Section 13 (As to conversion of borrowed money into capital);

Section 15 (Priority of mortgages under this Act);

Section 16 (Arrears may be enforced by appointment of a receiver);

Section 21 (Qualification of directors);

- Section 30 (Directors not to be disqualified by commis- A.D. 1914.
sioners under local Acts);
- Section 38 (Water for other than domestic purposes);
- Section 39 (Company not bound to supply water in
certain cases);
- Section 40 (Regulations to be made for preventing waste
of water &c.);
- Section 41 (Power for Company to refuse supply where
regulations not complied with);
- Section 42 (Protection from impurities and against waste);
- Section 43 (Remedy of Company in cases of fraud and
waste of water);
- Section 44 (Penalty for using water for other than
domestic purposes);
- Section 45 (As to supply of water by measure);
- Section 46 (Penalty for injury to and fraudulent use of
meters);
- Section 47 (Meters not to be repaired or altered except
under direction or with consent of Com-
pany);
- Section 48 (Where part of a dwelling-house supplied
water rate to be paid for the whole);
- Section 49 (Penalty for affixing tubes to Company's
pipes without consent);
- Section 51 (Notice of discontinuance);
- Section 52 (Power to remove pipes and fittings);
- Section 54 (Recovery of charges for supply of water
and rent of meters by distress);
- Section 58 (Several names in one warrant);
- Section 59 (Authentication of notices); and
- Section 61 (Penalties not cumulative).

65. All costs charges and expenses of and incidental to the Costs of Act.
preparing for obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Company.

A.D. 1914. The SCHEDULE referred to in the foregoing Act.

PROPERTIES WHEREOF PORTIONS ONLY MAY BE REQUIRED.

Parish.	Numbers on deposited Plans.
Tealby - - - -	50 55 68 75 77.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.